GOVERNMENT OF ZAMBIA

STATUTORY INSTRUMENT NO. 90 OF 2025

The Income Tax Act
(Laws, Volume 23, Cap. 323)

The Income Tax (Advance Income Tax) Regulations, 2025

IN EXERCISE of the powers contained in section 9 of the Income Tax Act, the following Regulations are made:

Title and commencement

1. (1) These Regulations may be cited as the Income Tax (Advance Income Tax) Regulations, 2025.

(2) These Regulations shall come into operation on 1st January, 2026.

Interpretation

2. In these Regulations, unless the context otherwise requires

"Commissioner-General" means the Commissioner General appointed under the Zambia Revenue Authority Act; and

Cap. 321

"remittance service provider" includes a bank, mobile money operator, financial technology application provider, digital wallet provider, money transfer operator or any other similar service provider used for the purposes of remitting funds.

Deduction of advance income tax by remittance service provider on remittances under section 81C of Act

3. A remittance service provider shall, where that remittance service provider is transmitting funds outside the Republic of a transaction made by a person or partnership without a tax clearance certificate and of a threshold specified under section 81C(1A)(b) of the Act, deduct advance income tax on that transaction.

Submission of return and payment of tax

4. (1) A remittance service provider referred to under regulation 3 shall, within fourteen days after the end of the month in which the transaction was made, submit to the Commissioner-General a return with respect to the deduction of the advance income tax as the Commissioner General may determine.

Copies of this Statutory Instrument can be obtained from the Government Printer, P. O. Box 30136, 10101 Lusaka. Price K8.00 each

(2) The tax on the return referred to under subregulation (1) shall be payable within fourteen days after the end of the month in which the transaction was made.

Repeal of SI No. 96 of 2024

5. The Income Tax (Advance Income Tax) Regulations, 2024 are repealed.

C. MULENGA,
Minister of Finance and National Planning

LUSAKA
30th December, 2025
[MFNP.BO/ 64/9/6]